



Notification Waiver Determination

Jellinbah Group - Further interest in Lake Vermont JV

Acquisition	Jellinbah Group Pty Ltd (Jellinbah Group) applied for a notification waiver in respect of its proposed acquisition, through a wholly-owned subsidiary QCMM (Lake Vermont Holdings) Pty Ltd, of an additional 10% interest in the unincorporated joint venture that owns and operates the Lake Vermont coal mine in Queensland's Bowen Basin (Lake Vermont JV) from a subsidiary of Sojitz Corporation (Sojitz), as described in the transaction documents provided as part of the application (the Acquisition). As part of the Acquisition, Jellinbah Group will also acquire an additional 10% of the shares in Bowen Basin Coal Pty Ltd, an entity that holds the Lake Vermont JV's mining tenements. As a result of the Acquisition, Jellinbah Group's interest in the Lake Vermont JV (and in Bowen Basin Coal Pty Ltd) will increase from 70% to 80%.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	8 September 2026

Parties to the Acquisition	Jellinbah Group is an Australian business that holds interests in two unincorporated joint ventures, the Jellinbah East JV and the Lake Vermont JV, which own and operate metallurgical coal mines (the Jellinbah and Lake Vermont mines, respectively) in Queensland's Bowen Basin. Jellinbah Group holds, through wholly-owned subsidiaries, a 70% interest in both the Lake Vermont JV and the Jellinbah East JV. The vendor, Sojitz, is a multinational general trading company incorporated in Japan. In Australia, Sojitz holds interests in several mining projects (including coal projects), as well as investments in the renewable energy, infrastructure and transport sectors. Sojitz is divesting its full interest in the Lake Vermont JV. The Lake Vermont JV produces metallurgical coal and small volumes of thermal coal, which it supplies globally. The participants in the Lake Vermont JV between them hold 100% of the shares in Bowen Basin Coal Pty Ltd (in proportion to their interests in the Lake Vermont JV), which holds the property and tenures associated with the Lake Vermont mine.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information provided by the applicant, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. Jellinbah Group is already a majority interest holder in the Lake Vermont JV, and the Acquisition would increase Jellinbah Group's existing majority interest holding b. the Acquisition is expected to have limited impact on domestic sales of coal in Australia c. there are alternative suppliers of both metallurgical and thermal coal in Australia and globally. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act